

ARBITRAL TRIBUNAL
ARBITRATION CASE NO. ARB/114/2026

**CROSS-EXAMINATION TRANSCRIPT — CONTRACTS MANAGER, KONKAST
ENGINEERING**

Recorded on 20.05.2026

Q: You have stated that land-clearance formalities remained incomplete into April 2025. On what document do you rely for this statement?

A: I rely on the Claimant's own Site Diary entries for the relevant period, which record the continuing formalities.

Q: Is it correct that the Respondent raised no written objection to the adequacy of site access at the time of handover on 05.03.2025?

A: I am not aware of any written objection raised on that specific date.

Q: When did the Respondent first raise a written objection regarding site access?

A: I would need to check the correspondence records, but my recollection is that it was raised only after the delay had already occurred.

Q: I put it to you that the Respondent's own equipment mobilisation, and not any residual land-clearance issue, caused the seven-week delay referred to in the evidence. Do you agree?

A: I do not agree; in my assessment, both factors contributed, though I accept that mobilisation also took longer than originally planned.

Q: Is there any written variation order for the additional cable trenching works you have described?

A: No, there is no written variation order; the instruction was given telephonically and recorded in our internal memo.

Q: Who, on behalf of the Claimant, gave that telephonic instruction?

A: It was a member of the Claimant's site team; I did not personally take the call, but was informed of it by our site engineer at the time.

Q: Does the Respondent's internal working sheet for RA Bill No. 7 bear the counter-signature of the Claimant's Engineer-in-Charge?

A: No, it does not; it is our own internal assessment.